



Notification Waiver Determination

Coles - supermarket site in Palmwoods, QLD

Acquisition	Coles Group Property Developments Ltd (CGPD), a property development arm of Coles Group Limited (Coles), applied for a notification waiver in respect of its proposed acquisition of a parcel of land at 22 Palmwoods Montville Road, Palmwoods QLD 4555 (Target Site) from Neubau Holdings No 22 Pty Ltd, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	21 July 2026

Parties to the Acquisition	Coles is an Australian public company (ASX:COL) that primarily operates: • supermarkets nationwide through its subsidiary, Coles Supermarkets Australia Pty Ltd • retail liquor stores nationwide, trading under the Liquorland, Liquorland Warehouse and Liquorland Cellars brands. The acquirer, CGPD, buys land and constructs shopping centres, standalone supermarkets and / or liquor outlets and then sells these completed sites to third party buyers. The Vendor of the Target Site, Neubau Holdings No 22 Pty Ltd, is an Australian private property development and construction company, based on the Sunshine Coast in Queensland. It specialises in mixed-use, retail, commercial medical, industrial and residential developments. The Target Site is located in Palmwoods on the Sunshine Coast, Queensland. It is the proposed site of a new standalone Coles supermarket.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and certain publicly available information, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. Coles proposes to open a new supermarket site in Palmwoods, Queensland. Coles does not currently operate

	within Palmwoods. The closest existing Coles supermarket is located more than 6km away from the Target Site b. there are several alternative grocery retailers in and around the surrounding local area, including Woolworths, Aldi, IGA, and Foodworks c. the Target Site is not currently used for grocery retailing. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds determined under section 51ABP(1) being met. The ACCC observes that the targeted notification requirements for supermarkets determined under section 51ABQ(1) may also apply, but it does not consider it necessary to reach a concluded view in this regard. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by a division of the Commission constituted by a direction issued pursuant to section 19 of the Act